

Article 21 in Constitution of India

21. Protection of life and personal liberty

No person shall be deprived of his life or personal liberty except according to procedure established by law. **Editorial Comment** - Article 21 of the Indian Constitution guarantees the fundamental right to protection of life and personal liberty. It ensures certain safeguards against arbitrary deprivation of life and liberty.

Article 21 asserts that no person shall be deprived of their life except according to the procedure established by law. This means that every individual has the right to live, and their life cannot be taken away except in accordance with the prescribed legal procedures. The right to life encompasses various aspects, including the right to live with dignity, the right to livelihood, and the right to a healthy environment. Article 21 also protects the personal liberty of individuals. It states that no person shall be deprived of their personal liberty except according to the procedure established by law. Personal liberty includes the freedom to move freely, the freedom to choose one's place of residence, and the freedom to engage in any lawful occupation or profession.

In the landmark judgment, *A.K. Gopalan v. The State of Madras*, the Supreme Court held that personal liberty means the “liberty of the body” which is freedom from arrest and detention from false detention. The Supreme Court added that the meaning of the word ‘law’ means state made law only. So clearly this was a narrow interpretation of the word Personal freedom and Law. But in later cases, this view was redressed by the Judiciary. In the case of *R.C. Cooper v. Union of India* (1970) the court held that the word personal liberty would not only include Article 21 but also includes the 6 Fundamental Freedoms given under Article 19 (1).

In the case of *Kharak Singh v. State of Uttar Pradesh*, AIR 1963, the court adopted a wider meaning of personal liberty and said that it will include all the rights which are given under Article 19(1).

In the landmark judgment *Maneka Gandhi v. Union of India* (1978), Supreme Court held that the right to life and personal liberty under Article 21 is not limited to mere animal existence but includes the right to live with dignity. The court emphasized that the procedure established by law must be fair, just, and reasonable, and it cannot be arbitrary, oppressive, or unreasonable.

In *Olga Tellis v. Bombay Municipal Corporation* (1985), the court recognized the right to livelihood as an integral part of the right to life under Article 21. It held that the eviction of pavement dwellers without providing alternative arrangements would violate their right to life and personal liberty.

In the landmark judgment, *Vishaka v. State of Rajasthan* (1997), the supreme court addressed the issue of sexual harassment at the workplace. The court held that the right to a safe and secure working environment is a fundamental right flowing from Article 21. It laid down guidelines to prevent and redress sexual harassment at workplaces until appropriate legislation was enacted.

In, *National Legal Services Authority v. Union of India and Ors* (2014), The National Legal Services

Authority filed a PIL to protect the interests of transgendered persons. The court held that the Gender of a person is to be decided by the person themselves after looking into the Right to Life Article. So all the rights which are given to normal people must be given to transgendered people like Public toilets, medical care for transgendered persons and the provisions of reservations under Article 15 and 16 must be extended to them as they classify as a minority section.

In the case, *Animal Welfare Board v. A. Nagaraja* (2014), rights which are given to animals were up for contention (especially bulls used in Jallikattu festival). In this case, the Animal Welfare Board of India (AWBI) brought the attention of the court towards the cruelty and inhuman behavior which is faced by the animals which are used in the Jallikattu festival.

The court held that they have a duty under the doctrine of 'parens patriae' to take care of the rights of animals. Article 51A (g) of the Constitution also gives the principle of compassion towards living beings and animals. So under this case, the Supreme Court ruled that Jallikattu is constitutionally void.

In another landmark judgment, *K.S. Puttaswamy v. Union of India* (2017) (privacy judgment) the Supreme Court recognized the right to privacy as a fundamental right protected under Article 21. The court held that privacy is an essential aspect of personal liberty and dignity and is intrinsic to the entire constitutional scheme.

In *Common Cause v. Union of India* (2018), the court legalized passive euthanasia and recognized the right to die with dignity as a fundamental right under Article 21. The court held that individuals have the right to refuse medical treatment or life support and can make an advance directive specifying their wishes in case of terminal illness.

Article 21 also prohibits arbitrary or unlawful detention. It ensures that no person can be detained without proper legal justification or without following the due process of law. It safeguards against arbitrary arrests and protects individuals from being unlawfully deprived of their freedom. It also encompasses the right to a fair trial. It guarantees that every person accused of an offense shall have the right to a fair and impartial trial, including the right to legal representation, the right to be heard, and the right to present evidence in their defense.

In the case, *A.K. Roy v. Union of India* (AIR 1982) (NSA case), the Supreme Court discussed whether the provisions of Natural Justice should be applied to the National Security Act or not. This Act took away many important rights of a detained person like Right to be represented by a lawyer, Right to cross-examine the detaining authority etc. The court held that Natural justice is important but it cannot be applied in all the acts. It is important to look at the circumstances and the purpose of making the Act. So based on this logic the court upheld the NSA Act (1980).

The interpretation and scope of Article 21 have evolved through various landmark judgments of the Supreme Court, expanding its ambit to include protection against torture, custodial violence, and the right to a clean and healthy environment. It's important to note that reasonable restrictions can be imposed on the rights guaranteed under Article 21 in the interests of public order, national

security, public health, or morality. However, such restrictions must be fair, just, and in accordance with the principles of reasonableness and proportionality. References IndianKanoon Legal Service India Lawctopus Academike Wikipedia